

FEDERAL MARITIME COMMISSION

DOCKET NO. 24-15

**NETCYCLE TRADING CORP., *REVOCATION OF OCEAN TRANSPORTATION
INTERMEDIARY LICENSE NO. 021597NF***

**BUREAU OF ENFORCEMENT, INVESTIGATIONS, AND COMPLIANCE
SUBMISSION OF MATERIALS SUPPORTING NOTICE OF INTENT TO REVOKE**

Pursuant to Rule 702 of Subpart X of the Federal Maritime Commission (Commission or FMC) Rules of Practice and Procedure, 46 C.F.R. § 502.702, and the March 22, 2024 Notice and Initial Order, the Office of Enforcement (OE) within the Bureau of Enforcement, Investigations, and Compliance (BEIC) submits copies of the Notice of Intent to Revoke (Notice) issued to Netcycle Trading Corp. (Netcycle or Respondent) by the Bureau of Certification and Licensing (BCL), as well as an appendix of materials supporting the Notice to the presiding Administrative Law Judge (ALJ) and Respondent.

On March 8, 2024, BCL issued a Notice of Intent to Revoke the ocean transportation intermediary (OTI) license of Netcycle due to (1) the criminal guilty plea by Netcycle's listed President, Secretary and Qualifying Individual (QI) in the U.S. District Court for the Southern District of Florida and (2) Netcycle's failure to report material changes to the Commission, including any criminal indictment or conviction of a licensee, QI, or officer under 46 C.F.R. § 515.20(e). Beyond the failure to report the criminal charges, the nature of the charges and guilty plea—conspiracy to export stolen vessel parts and smuggle goods from the United States in violation of 18 U.S.C. § 371—led BCL to conclude that Netcycle was no longer qualified to provide ocean transportation intermediary services within the meaning of 46 U.S.C. § 40903 and

46 C.F.R. § 515.16(a)(1) and (4).

On March 19, 2024, pursuant to the Commission's regulations at 46 C.F.R. §§ 515.17 and 502.702, Netcycle submitted a timely request for a hearing to the Office of the Secretary. On March 21, 2024, the Commission issued a Notice of Hearing Request and Assignment transmitting this matter to the Office of Administrative Law Judges. On March 22, 2024, the presiding ALJ issued a Notice and Initial Order (Initial Order) advising OE of Netcycle's request for a hearing and OE's resulting obligation to provide to the ALJ and Netcycle a copy of BCL's Notice of Intent to Revoke and a copy of BCL's materials supporting the Notice, which are to be filed with the ALJ and served on Netcycle by April 16, 2024.

The Initial Order also indicated that OE may file a brief outlining its legal arguments, proposed findings of fact, and additional information. That brief would likewise be due on April 16, 2024. BEIC has considered whether to make such a filing, but respectfully declines the opportunity. BEIC will submit its reply pursuant to Rule 704 of the Commission's Rules of Practice and Procedure, 46 C.F.R. § 502.704, within twenty (20) days of the filing of Netcycle's response.

Respectfully submitted,

**JONATHAN
TODD**

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JONATHAN TODD
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Julie L. Berestov, Director
Jonathan Todd, Trial Attorney
Grace Lee, Trial Attorney
Bureau of Enforcement,
Investigations, and Compliance
Federal Maritime Commission
800 North Capitol St., N.W.
Washington, D.C. 20573-0001
(202) 523-5783
jberestov@fmc.gov
jtodd@fmc.gov
glee@fmc.gov

CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing document was served upon Respondent via electronic mail this 16 day of April 2024.

JONATHAN
TODD

Jonathan Todd

Digitally signed by
JONATHAN TODD
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